Strategic Cross-Border Litigation Roadmap: Jurisdictional Projection, Asset Preservation, and Regulatory Leverage in the Post-Brexit Landscape

1. Executive Summary: The Shift to Asymmetric Remote Litigation

This comprehensive strategic report constitutes a revised legal roadmap for a Litigant in Person (LiP) seeking to commence high-value civil proceedings in the Business and Property Courts of England and Wales against a Defendant domiciled in Portugal. This analysis is fundamentally recalibrated to address the Claimant's specific operational constraints: the inability to retain professional process servers for "transient jurisdiction" within the UK, the necessity of initiating action immediately without awaiting the Defendant's return to the jurisdiction, and the requirement to manage the entire litigation process personally using technological means and public legal infrastructure.

The strategic pivot required here is substantial. Moving away from the "Hotel Trap" (serving the Defendant while physically present in London) necessitates a transition to a formal cross-border litigation footing. This approach relies less on opportunistic timing and more on the rigorous application of international treaties—specifically the *Hague Service Convention 1965* and the *Hague Judgments Convention 2019*—to project the authority of the English High Court into the Portuguese jurisdiction. While this path is more procedurally demanding, the analysis confirms it is legally viable and, given the Defendant's admissions of tax evasion and asset concealment, offers a potent "two-front" offensive strategy combining civil asset freezing with regulatory whistleblowing.

The core of this strategy rests on three pillars. First, **Jurisdictional Anchoring**: utilizing the "Gateway" provisions of the Civil Procedure Rules (CPR) to establish that the English Court is the proper forum for the dispute, despite the Defendant’s residence abroad. This relies on the formation of the contract in London and the location of the harm (psychiatric and financial) within the jurisdiction. Second, **Procedural Execution**: leveraging the Foreign Process Section of the Royal Courts of Justice to effect valid service in Portugal, bypassing the need for private agents. Third, **Asset & Regulatory Leverage**: utilizing the Defendant's own written admissions of €600,000 in tax fraud not only as the evidentiary basis for a Worldwide Freezing Order (WFO) but also as the foundation for a formal report to HMRC's new "Strengthened Reward Scheme" and the Portuguese *Autoridade Tributária* (AT). This creates a "pincer movement" where the civil claim threatens the Defendant's assets, while the regulatory reporting threatens his liberty and fiscal standing.

2. Jurisdictional Architecture: Anchoring the Claim in London

The foundational challenge for the Claimant is to establish that the English High Court has the authority to hear a case against a Defendant who lives in Portugal, particularly now that the UK has left the European Union and the Brussels Recast Regulation regime no longer applies. Since the Claimant cannot rely on serving the Defendant physically within the UK, jurisdiction must be established under the regime of "Service Out of the Jurisdiction."

2.1 The CPR 6.36 Permission Regime

For a Litigant in Person, understanding Civil Procedure Rule (CPR) 6.36 is paramount. This rule dictates that a claimant must obtain the *permission of the court* to serve a claim form on a defendant outside of the United Kingdom. This permission is not automatic; it is a judicial discretion exercised only when specific legal tests are met. The Claimant must effectively convince a High Court Master, usually via a paper application or a short hearing, that England is the rightful home of this dispute.

To secure this permission, the Claimant must satisfy a tripartite legal test. First, there must be a **"serious issue to be tried."** This is a relatively low threshold, requiring the Claimant to show that the claim is not frivolous and has a realistic prospect of success. The detailed evidence logs—specifically the WhatsApp messages confirming the "investment," the payment history ("funds hit the bank"), and the explicit abuse—provide a robust evidentiary basis to satisfy this requirement. The court does not need to be convinced the Claimant will *win* at this stage, only that there is a genuine case to answer.[1]

The second and third tests—the "Good Arguable Case" for a jurisdictional gateway and the "Forum Conveniens" test—are more complex and require precise legal framing.

2.2 Constructing the Jurisdictional Gateways (PD 6B)

The Claimant must hook the claim onto one or more of the "gateways" listed in Practice Direction 6B. Based on the factual matrix provided, the analysis identifies two primary gateways that are legally viable and should be pleaded concurrently.

The Contractual Gateway (Gateway 6)

The Claimant asserts a breach of a commercial agreement for software services. Under Gateway 6(a), jurisdiction exists if the contract was "made within the jurisdiction." Contract formation analysis for instant communications (like WhatsApp) generally follows the *Entores* rule, which posits that a contract is formed where the acceptance is received. If the Defendant was in London when he received the Claimant's message accepting the terms of the "investment" and "profit share," the contract is technically made in England.

However, a more robust argument for the Claimant relies on Gateway 6(c), which applies if the contract "is governed by the law of England and Wales." Even in the absence of a written choice of law clause, the Rome I Regulation (which remains retained EU law in the UK) dictates that a contract for the provision of services is governed by the law of the country where the service

provider has their habitual residence. As the Claimant is a software engineer resident in London who performed the coding work (the "cooking" of the code) within the jurisdiction, English law applies by default. This provides a strong, objective basis for permission to serve out that does not rely on proving where the Defendant was standing when he read a WhatsApp message.[3]
Furthermore, Gateway 7 applies where a contract has been "breached within the jurisdiction." The breach alleged is the failure to pay the agreed financial support and profit share. In English law, the debtor must seek out the creditor. Since the Claimant's bank accounts are in the UK, the failure to receive funds constitutes a breach occurring within England.

The Tort Gateway (Gateway 9)

The claims for harassment, personal injury (psychiatric damage), and disability discrimination fall under the tort gateways. Gateway 9(a) applies if "damage was sustained, or will be sustained, within the jurisdiction." This is a critical evolution in English law following the Supreme Court's decision in *Brownlie v FS Cairo (Nile Plaza) LLC*, which clarified that "damage" is not limited to the direct physical act but extends to the significant physical or psychiatric injury and consequential financial loss suffered by the victim.
The Claimant's psychiatric injury—the exacerbation of CPTSD and the resulting "hindered ability to code"—was sustained in London. The professional economic loss (loss of earnings from the inability to work) is also centered in London. Therefore, even though the physical assault (the "neck grab") occurred in Galway and the messages may have been sent from Portugal, the *damage* anchors the claim in England. Additionally, under Gateway 9(b), the act causing damage (the receipt and reading of the harassment) occurred within the jurisdiction.[5]

2.3 Winning the *Forum Conveniens* Argument

The final hurdle is proving that England is the *forum conveniens*—the clearly appropriate forum for the dispute. The Defendant, if he engages, will almost certainly argue that the case should be heard in Portugal (his domicile). To defeat this, the Claimant must proactively demonstrate that the interests of justice connect the case more strongly to London.
The Claimant should present a comparative table in the witness statement supporting the application for permission to serve out, highlighting the following factors:

Factor	Argument Favoring England (Claimant's Position)	Weakness of Portugal as Forum
Governing Law	The contract for services is governed by English Law (Rome I Regulation) as the service provider is UK-resident.	Portuguese courts would have to apply foreign (English) law, increasing cost and complexity.
Language of Evidence	All 4,000+ WhatsApp messages, technical code, and documentation are in English.	Proceedings in Portugal would require certified translation of all evidence into Portuguese, creating a prohibitive cost barrier.
Witnesses	Expert medical witnesses (psychiatrists treating CPTSD)	Compelling UK doctors to testify in a Portuguese court is

	are based in the UK.	logistically difficult and costly.
Location of Harm	The psychiatric injury and economic loss occurred in London.	The harm has no connection to Portugal other than the Defendant's residence.
Access to Justice	The Claimant is a Litigant in Person with limited funds due to the Defendant's breach.	Forcing the Claimant to litigate in a foreign language jurisdiction would effectively deny access to justice due to the cost of local counsel.

The argument regarding "Access to Justice" is particularly potent for a Litigant in Person. The English court is sensitive to the practical reality that requiring an impecunious claimant to hire Portuguese lawyers would effectively extinguish the claim. By demonstrating that the English courts are accessible via the CE-File system and self-representation, while the Portuguese system presents insurmountable linguistic and financial barriers, the Claimant strengthens the *forum conveniens* case.[5]

3. The Procedural Engine: Commencing Proceedings as a Litigant in Person

The Claimant expressed concern about capability ("I don't think I'm capable of doing that"). However, the modern English court system has been digitized to a degree that allows a technologically literate individual to manage complex litigation from a laptop. The "technical defense" capability mentioned by the Claimant is directly transferable to the procedural management of the case.

3.1 Electronic Filing: The CE-File System

The Business and Property Courts (which include the Chancery Division and Commercial Court) utilize a mandatory electronic filing system known as **CE-File**. While primarily designed for professional lawyers, Litigants in Person are permitted and strongly encouraged to use it. This is the control center for the litigation.

Actionable Steps:

1. **Registration:** The Claimant must register for a CE-File account at https://efile.cefile-app.com/. This requires a valid email address and credit card for court fees.
2. **Remote Management:** Once registered, the Claimant can file the Claim Form (N1), Application Notices (N244), and witness statements as PDF uploads. This eliminates the need to physically travel to the Rolls Building in London to stamp documents.
3. **Case Tracking:** The system provides a digital case file, allowing the Claimant to see exactly what has been filed and when, providing a "single source of truth" for the litigation status.
4. **Public Access:** As of 2026, the transparency rules regarding CE-File have changed,

allowing for broader public access to filed documents. The Claimant should be aware that filed documents (like the Particulars of Claim) may be accessible to the public/press, which can be a strategic lever if the Defendant wishes to avoid reputational damage regarding the fraud allegations.[6]

3.2 The Claim Form (Form N1) and Particulars of Claim

The process begins with issuing the **Claim Form (Form N1)**. For a LiP, accuracy here is critical to avoid technical challenges later.

- **Claimant Details:** Must state the Claimant's full residential address in the UK.
- **Defendant Details:** Must state the Defendant's address in Portugal. If the exact address is unknown, the Claimant must make reasonable inquiries (OSINT) to locate it, or apply for an order for alternative service (see Section 4.3).
- **Brief Details of Claim:** "The Claimant seeks damages for breach of contract, harassment, disability discrimination, and personal injury arising from a commercial agreement for software services. The Claimant also seeks a declaration regarding profit share entitlement."
- **Value:** If the claim is for a specific sum (e.g., the unpaid support), state it. If damages are to be assessed (e.g., for psychiatric injury or profit share), the Claimant should mark "Damages to be assessed" but indicate the bracket (e.g., "The Claimant expects to recover more than £100,000").
- **Form N510:** Because the Defendant is outside the UK, the Claimant *must* file **Form N510** ("Notice for Service out of the jurisdiction where permission of the court is not required") *OR* apply for permission. Since the post-Brexit rules generally require permission unless there is a specific jurisdiction clause, the Claimant will likely need to file the N1 *and* an application for permission to serve out simultaneously.[1]

3.3 The Application Notice (Form N244)

To get the permission discussed in Section 2, the Claimant files **Form N244**.

- **Order Sought:** "Permission to serve the Claim Form and Particulars of Claim on the Defendant out of the jurisdiction in Portugal pursuant to CPR 6.36."
- **Evidence:** The application must be supported by a witness statement (see Section 5 for content) verifying the facts that support the "Gateways" and the "Serious Issue to be Tried."

4. Projecting Power: The Mechanics of Service in Portugal

The instruction "he would probably have to be contacted in Portugal" necessitates a deep dive into the **Hague Service Convention 1965**. This is the international treaty that allows the English Court to send documents to Portugal. It is a strict, bureaucratic process where errors can be fatal to the claim.

4.1 The Role of the Foreign Process Section (FPS)

The Claimant does not send documents directly to the Portuguese court. Instead, the English High Court acts as a "Forwarding Authority." This function is performed by the **Foreign Process Section (FPS)** located at the Royal Courts of Justice.

- **Location:** Room E16, Royal Courts of Justice, Strand, London WC2A 2LL (Note: Some older guides say E02, but E16 is the current operational room for public interactions regarding foreign process).[9]
- **Contact:** The FPS can be contacted at foreignprocess.rcj@justice.gov.uk. For a LiP, establishing a dialogue with the clerks here is invaluable. They cannot give legal advice, but they can check if forms are filled out correctly before transmission.

4.2 The "Article 5" Route: Formal Central Authority Service

This is the "gold standard" of service. It is slow (6-12 months) but unassailable.

1. **The Request:** The Claimant fills out the standard Hague Request Form (available from the FPS).
2. **The Bundle:** The Claimant must provide two identical bundles containing:
    - The Claim Form and Particulars of Claim.
    - The "Response Pack" (Forms N9, N10, etc., for the Defendant to reply).
    - **Translations:** This is the critical bottleneck. Portugal has made a reservation under Article 5(3) of the Convention requiring that *all* documents served must be translated into Portuguese.
3. **Translation Requirement:** Even if the Defendant is Irish and speaks English, the Portuguese Central Authority (*Direção-Geral da Administração da Justiça*) will reject the service if it is not accompanied by a Portuguese translation. This is a matter of Portuguese sovereignty, not the Defendant's convenience. The Claimant must budget for professional translation of the Claim Form and Particulars. **Crucially**, the voluminous evidence (thousands of WhatsApps) usually does *not* need to be translated for the purpose of service, only the initiating legal documents. This distinction saves thousands of pounds.[10]

4.3 The "Article 10" Loophole: Postal Service

Article 10(a) of the Hague Convention allows for service by postal channels *unless* the destination state objects. Research confirms that **Portugal does not object to Article 10(a)**.[12] This offers a massive strategic advantage to the LiP. It theoretically allows the Claimant to serve the Defendant simply by sending the documents via international registered post (e.g., DHL/FedEx/Royal Mail Tracked) to his address in Portugal. This is faster and cheaper than the Article 5 route.

The Risk: The English Court must be satisfied that the documents actually reached the Defendant. If he refuses to sign, or the tracking is unclear, service may be deemed invalid.

The Strategy: The Claimant should adopt a "belt and braces" approach.

1. Apply for permission to serve via **Article 10 (Post)** *and* **Article 5 (Central Authority)**

simultaneously.

2. Also apply for **Alternative Service (CPR 6.15)** via email and WhatsApp. Given the commercial relationship was conducted entirely via WhatsApp, English courts are increasingly willing to allow service via these digital channels if traditional methods are slow or obstructed (see *AA v Persons Unknown* regarding service via NFT/email in crypto fraud cases). If the Master grants permission for email/WhatsApp service, the delay of the Hague Convention is bypassed entirely.[14]

5. Asset Preservation: The "Nuclear Option" for the LiP

The Defendant's admission of "hiding income/assets like gold" and "€600k fraud" is the strategic linchpin of this litigation. It elevates the case from a simple debt dispute to a fraud claim, justifying "draconian" interim relief: the **Worldwide Freezing Order (WFO)**.

5.1 The Strategic Necessity of the WFO

If the Claimant serves the proceedings without a freezing order, the Defendant (who has already admitted to hiding assets) will likely dissipate his remaining assets (crypto/gold) before a judgment can be enforced. A WFO freezes his assets globally *before* he is alerted to the claim.

5.2 The Application Procedure (Form N244)

Applying for a WFO is technical. The Claimant must file an **Application Notice (N244)** "without notice" (ex parte).

- **The Test:** The Claimant must prove:
    1. A good arguable case (satisfied by the contract/harassment evidence).
    2. A real risk of dissipation. This is usually the hardest hurdle, but the Defendant's text messages ("I hide my gold," "tax evasion") act as **solid evidence** of a propensity to dissipate. This is rare and powerful evidence.[15]
    3. It is "just and convenient."

5.3 The "Cross-Undertaking in Damages" Trap and Solution

The biggest barrier for a LiP is the "Cross-Undertaking in Damages." This is a promise to pay the Defendant damages if the WFO turns out to be wrongly granted. Usually, the court requires the applicant to show they have assets to back this promise (fortification). A LiP often cannot do this.

The Solution: The Claimant must rely on the principle in *Allen v Jambo Holdings* and recent trends in fraud litigation. The argument to the Judge is:

1. **Impecuniosity caused by Defendant:** "I cannot provide security because the Defendant has withheld my earnings/profit share."
2. **Strong Fraud Evidence:** "The risk of this order being 'wrong' is minimal because the Defendant has *admitted* to fraud and asset hiding in writing. The balance of convenience favors freezing the assets of a self-confessed tax evader over the procedural niceties of an undertaking."

3. **Access to Justice:** To require capitalization would deny the Claimant access to justice against a fraudster.

The Claimant should request that the cross-undertaking be accepted without fortification (i.e., without putting up money), explicitly citing the Defendant's admissions of dishonesty as the justification.[17]

5.4 Freezing Crypto and Gold

Standard freezing orders apply to "assets." However, for clarity, the Draft Order (which the Claimant must write based on the Model Order in PD 25A) must explicitly define "assets" to include:

- "Crypto-assets, cryptocurrencies, non-fungible tokens (NFTs), and digital tokens held in any wallet or exchange."
- "Physical precious metals including gold bars or bullion."

The WFO must also include a **Disclosure Order**. This forces the Defendant to list his assets (wallet addresses, physical location of gold) within days of service. If he lies or fails to disclose, he is in Contempt of Court, which carries a prison sentence. This threat is often what forces a settlement.[19]

6. Evidence and Admissibility: "Self-Sourced" Intelligence

The Claimant has "found sources" and is "defending myself technologically." This refers to the collection of digital evidence (WhatsApp logs, blockchain data, OSINT).

6.1 Admissibility of Digital Evidence

In the High Court, the rules of evidence are flexible (civil standard of proof: "balance of probabilities").

- **WhatsApp/Social Media:** These are admissible. The key is **authenticity**. The Claimant should export the chats using the native "Export Chat" function (which creates a verified.txt or.zip file) rather than just screenshots, which can be faked.
- **Metadata:** Preserve the metadata. The "blue ticks" (read receipts) and timestamps are critical for proving jurisdiction (i.e., proving the Defendant *read* the message while the Claimant was in London).
- **Blockchain Data:** If the Claimant has tracked funds on the blockchain ("finding sources"), this ledger data is admissible as "real evidence." It is treated as a factual record. The Claimant should present this in a Witness Statement, explaining clearly: "I tracked the funds from Wallet A (known to be Defendant's) to Wallet B." Tools like Etherscan prints are standard exhibits.[21]

6.2 The "Eggshell Skull" and Medical Evidence

For the psychiatric injury claim, the Claimant must organize their medical evidence to support the "Eggshell Skull" rule. This legal doctrine states that a tortfeasor takes their victim as they

find them. The Defendant cannot argue "the Claimant was already fragile so I'm not responsible for the breakdown." The Claimant is entitled to damages for the *full extent* of the exacerbation caused by the harassment. The Claimant should collate all medical notes from the period of the harassment to prove the *causal link* between the abusive messages and the decline in health/ability to code.[4]

7. The Regulatory Pincer: HMRC and the Portuguese AT

The Defendant's admission of €600,000 in tax fraud is a strategic asset. Reporting this is not just civic duty; it is leverage.

7.1 HMRC's "Strengthened Reward Scheme" (2026)

In late 2025/2026, HMRC launched a new whistleblower reward scheme modeled on the US IRS program. It offers rewards of **15% to 30%** of tax collected for high-value evasion (over £1.5m). While the Defendant's *admitted* fraud is €600k (approx £500k), the total evasion (including penalties, interest, and other years) could easily breach the £1.5m threshold required for the reward scheme.

How to Report:

- **Portal:** Use the official online fraud reporting tool on GOV.UK.[23]
- **Detail:** Provide the Defendant's name, known UK addresses/history, the specific entities involved, and the *method* (hiding assets in gold/crypto).
- **Identity:** To be eligible for the reward, the Claimant **cannot be anonymous**. They must provide their details.
- **Evidence:** Reference the WhatsApp admissions.

Strategic Effect: An HMRC investigation freezes the Defendant's ability to operate financially in the UK and signals to him that his "tax evasion" shield is broken.

7.2 Reporting to the Portuguese Tax Authority (AT)

The Portuguese *Autoridade Tributária* (AT) is highly aggressive regarding "Manifestations of Fortune" (where lifestyle exceeds declared income).

- **Mechanism:** Reports can be made via the **Portal das Finanças** using the **e-balcão** (e-desk) service. While the portal is in Portuguese, the Claimant can use translation tools to navigate it. Reports can also be sent via email to at@at.gov.pt.[25]
- **Content:** Report the "concealment of assets (gold) and crypto-income."
- **Effect:** A tax audit in Portugal would likely result in the freezing of the Defendant's Portuguese bank accounts and real estate *by the state*. This creates immense pressure on the Defendant to settle the civil claim to try and clean up his legal mess, although the Claimant must be careful; if the State seizes everything, there may be nothing left for the civil judgment. The WFO should ideally be served *before* the tax authorities seize assets.

Warning: The Claimant must never demand money *in exchange* for not reporting. That is blackmail. The report should be made independently, or the Claimant can simply state in

settlement negotiations: "I reserve my right to comply with all regulatory reporting obligations regarding the admitted tax fraud."

8. Enforcement Endgame: The Hague Judgments Convention 2019

A critical new development for 2026 is the entry into force of the **Hague Judgments Convention 2019**.

- **Status:** The UK ratified this convention, and it entered into force on **July 1, 2025**.[27]
- **Relevance:** This treaty forces Portugal (an EU member) to recognize and enforce judgments from the UK courts in civil and commercial matters.
- **Impact:** Before this, enforcing a UK judgment in Portugal was legally murky post-Brexit. Now, there is a clear treaty path. If the Claimant wins in London, the Portuguese court *must* enforce the judgment (seize the Defendant's house/car/gold) without re-trying the case. This makes the London litigation highly effective, not just symbolic.

9. Operational Action Plan for the Litigant in Person

Step 1: Digital Infrastructure (Immediate)

- Register for **CE-File** to enable remote filing.
- Secure all digital evidence (export chats, verify metadata, save blockchain traces).

Step 2: The "Nuclear" Application (Week 1-3)

- Draft **Form N244** for a **Worldwide Freezing Order**.
- Draft the **Affidavit** focusing on the "Risk of Dissipation" (the gold/tax fraud admissions).
- Contact the **RCJ Advice Bureau** and apply for **CLIPS** (Chancery Bar Litigant in Person Support) assistance. Request a volunteer barrister to argue the WFO application for you. This significantly increases the chance of success and solving the "cross-undertaking" problem.

Step 3: Commencing the Main Claim (Week 4)

- Issue **Form N1** (Claim Form) via CE-File.
- File **Form N510** and the application for **Permission to Serve Out** (CPR 6.36) concurrently.
- Argue **Gateways 6 & 9** (Contract/Tort) and *Forum Conveniens* (UK law, UK witnesses, UK evidence).

Step 4: Service Execution (Week 6+)

- If Permission is granted, prepare the translation bundle for Portugal (budget for this).
- Lodge the request with the **Foreign Process Section** (Room E16, RCJ).
- Simultaneously apply for **Alternative Service** via WhatsApp/Email to speed up the process.

Step 5: The Regulatory Lever (Post-Service)

- Once the WFO is served and the Defendant is "locked down," file the whistleblower reports with **HMRC** (for the reward) and the **Portuguese AT** (for pressure).

10. Conclusion

The Claimant's inability to serve the Defendant in London does not end the claim; it merely changes the battlefield. The new strategy relies on the **Hague Judgments Convention 2019** to ensure the final result is enforceable, and the **Hague Service Convention** to validly start the process. Crucially, the Defendant's own arrogance—his written admissions of tax fraud—provides the Claimant with the "nuclear" capability to freeze assets and trigger regulatory investigations. By methodically following the procedural steps for "Service Out" and leveraging the LiP support infrastructure (CE-File, CLIPS), the Claimant can conduct this "remote warfare" effectively from their own home.

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